

Shabina Parveen v. State of U.P. (recovery citation remitted to clause 6.5)

High Court of Judicature at Allahabad · Division Bench · 5 July 2022 · WRIT-C No. 18710 of 2021 · WRIT - C No. - 18710 of 2021 · **Writ disposed; objection under Para 6.5; coercive action stayed eight weeks.**

HEADNOTE

Without deciding merits, the Division Bench disposed of a writ challenging a Tehsildar recovery citation for electricity dues of about Rs 2.69 lakh and seeking reconnection, relegating the consumer to an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005, to be decided by the distribution licensee after hearing, and staying coercive recovery for eight weeks or until that objection is decided, whichever is earlier.

FACTUAL SUMMARY

Shabina Parveen challenged a Tehsildar, Ghaziabad recovery citation dated 25 January 2021 for about Rs 2.69 lakh, seeking quashing of the citation, restoration of her electricity connection, and a restraint on coercive recovery. Counsel for the Power Distribution Corporation (respondent no. 4) stated on instructions that she could object to the demand and that the objection would be decided in accordance with law within a time-bound period. Counsel for the petitioner and the State were also heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-objection-to-recovery-demand

HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee (respondent no. 4) within four weeks; if filed in time, the objection shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing. Coercive action on the impugned demand is stayed for eight weeks or till disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court treated Para 6.5 as the forum for objecting to the recovery citation and disposed of the writ without a merits grant or refusal, with a short stay of coercive recovery. ¶ 4-5

clause-6.5-statutory-remedy Liberty was granted to file a Para 6.5 objection before the distribution licensee, to be decided in accordance with law after hearing. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION AND UNDERLYING ELECTRICITY DEMAND OF ABOUT RS 2.69 LAKH

The Court expressly declined to express any opinion on merits. ¶ 4

NOT DECIDED — PRAYER FOR RECONNECTION OF ELECTRICITY SUPPLY

¶ 2,4